

POKER FLAT P.O.A., INC. v. ROLON

22CV46309

**PLAINTIFF'S MOTION FOR MONETARY SANCTIONS
FOLLOWING NON-ATTENDANCE OF DEFENDANT ROLON
AT THE FIRST SETTLEMENT CONFERENCE**

Defendant owns a parcel of shorefront residential property on Lake Tulloch. The property is located within a common-interest development that is managed by plaintiff. Defendant acquired the real property from a foreclosing bank. At the time of defendant's purchase, there was damage from a landslide/soil subsidence to the land, flora, and improvements (stairways, retaining walls, covered dock, and the home's foundation). Plaintiff brought this action to enforce special assessments to clean the property. According to defendant's Settlement Conference Statement, a geotechnical engineer has been retained to design a retaining wall and drainage system for the property.

A Settlement Conference ("MSC") was scheduled for Oct. 23, 2023, which defendant did not attend. An Order to Show Cause ("OSC") was held on November 17, 2023, where defendant testified he had been ill during the earlier MSC. The Court reset the MSC, did not strike defendant's answer and dismissed the OSC. (The second MSC was held March 4, 2024. It was unsuccessful and a trial has been set.)

To obtain monetary sanctions for non-attendance at a settlement conference, the moving party must show that the other party engaged in bad faith actions or tactics that are frivolous or intended solely to cause unnecessary delay. (California Code of Civil Procedure ("CCP") § 128.5, subd. (a).) The tactics or actions at issue must have been undertaken with bad faith. Notice and an opportunity to be heard must be given. (CCP § 128.5, subd. (c); *Pacific Trends Lamp & Lighting Products, Inc. v. J. White, Inc.* (1998) 65 Cal.App.4th 1131, 1136.)

The necessary showing of bad faith on the part of defendant has not been made, particularly noting that at the OSC hearing the Court found good cause to dismiss and not impose any sanctions.

Based on the foregoing, the Motion for Monetary Sanctions is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to CRC 3.1312 in conformity with this Ruling.

**JODY GRAHAM TRUSTEE OF THE LEE AND JANE HESS
FAMILY TRUST v. STATE OF CALIFORNIA, et al**

20CV44999

PLAINTIFF'S MOTION TO TAX COSTS

Plaintiff Trustee brought this action against defendant (State Teachers Retirement Service) for late payments of benefits. Defendant's demurrer was sustained by this Court.

California Code of Civil Procedure §1033.5(a)(14) states that recoverable costs include: "Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents."

In opposition to the motion, defendant's declaration offers cost estimates if filings were by an in-person filing agency but omits low-cost alternatives such as mail. There is no showing of a Court Order requiring electronic filing in this case or that other fees were incurred. The Court concludes defendant's incurred electronic filing fees represent an elective procedure of convenience by using a service when they can be directly e-filed through the court's website at no cost.

Plaintiff's motion to tax costs is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to CRC 3.1312 in conformity with this Ruling.